

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----x
REILY TORIBIO,

Plaintiff,

- against-

Index No. /2016

Date Purchased:

SUMMONSPlaintiff Designates
New York County as the
Place of TrialThe Basis of Venue is
County of Incidence
OccurrenceTHE CITY OF NEW YORK,
P.O. ORTIZ (tax identification number 952073),
P.O. SHAW, and POLICE OFFICERS JANE and
JOHN DOES 1-10.Defendants.
-----x

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, or within 30 days after service is complete if this Summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer judgement will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
June 3, 2016Alexei Schacht, Esq.
Attorney for Plaintiff
123 West 94th Street
New York, New York 10025

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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REILY TORIBIO,

Plaintiff,

- against-

THE CITY OF NEW YORK,
P.O. ORTIZ (tax identification number 952073),
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Index No.:

VERIFIED COMPLAINT

PLAINTIFF DEMANDS
TRIAL BY JURY

Plaintiff REILLY TORIBIO, by and through his attorney, Alexei Schacht, Esq., 123 West 94th St., New York, New York 10025, complaining of the Defendants, The City of New York, Police Officer P.O. Ortiz (tax identification number 952073), P.O. Shaw, and Police Officers John and Jane Doe 1-10, collectively referred to as the Defendants, upon information and belief allege as follows:

JURISDICTION AND VENUE

1. Jurisdiction over these claims is conferred upon this Court pursuant to 28 U.S.C. § 1331 and § 1343(a)(3), this being an action authorized by law to redress the deprivation of rights secured under color of state and city law, statute, ordinance, regulation, custom and usage of a right, privilege and immunity secured to the Plaintiff by the First, Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States.

2. This case is being brought pursuant to 42 U.S.C. § 1983. Jurisdiction supporting Plaintiff's claims for attorneys' fees is conferred by and brought pursuant to 42 U.S.C. § 1988.

3. All causes of action not relying exclusively on the aforementioned federal and state causes of action as a basis of this Court's jurisdiction are based on the Court's supplemental jurisdiction pursuant to 28 U.S.C. §1367 to hear state law causes of action. The events, parties, transactions, and injuries that form the basis of Plaintiffs' federal claims are identical to the events, parties, transactions, and injuries that form the basis of Plaintiffs' claims under applicable State and City laws.

4. All the deprivation of rights complained of herein occurred within the county of New York in the State of New York.

NATURE OF THE ACTION

5. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983, § 1988 [and § 1985], [and arising under the law and statutes of the State of New York].

6. This is an action to further seek compensation for the serious and permanent personal injuries sustained by the plaintiff, as a result of the negligence of the defendants, perpetrated while said defendant police officers were in the process of illegally and unlawfully arresting plaintiff.

PARTIES

7. REILLY TORIBIO is a citizen of the United States, resides in New York, and is a resident of the State of New York.

8. At all times relevant to this action, Defendant P.O. ORTIZ was a police officer with the City of New York Police Department and acting under color of state law. He

is being sued in both his individual and official capacity.

9. At all times relevant to this action, Defendants Police Officers are and were officers of the City of New York Police Department and acting under color of state law. Said officers are being sued in both their individual and official capacities.

10. The Defendant, City of New York, is a municipality in the State of New York and employs the Defendant Police Officers.

11. The Defendant Police Officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the Defendants Police Officers' acts as described above.

FACTUAL BACKGROUND

12. On or about the morning of August 27, 2016, plaintiff REILLY TORIBIO was driving his mother's white 2014 Mercedes Benz ML63 automobile on 176th Street, near the NYPD 34th Precinct. The automobile had original factory tinted windows supplied by the automobile manufacturer at the time the automobile was purchased.

13. At the above time and place, as defendant P.O. ORTIZ ("Officer Ortiz") was backing another automobile into a parking space on the street, said automobile came close to contacting Plaintiff's vehicle causing Plaintiff to signal once with his automobile's horn.

14. Plaintiff could not see the occupant of the other automobile because it had tinted windows.

15. Officer Ortiz, in NYPD uniform, responded to the horn by getting out of his car, standing up and yelling at Plaintiff: "Do you know who I am?"

16. Plaintiff responded by informing Officer Ortiz that he was blocking traffic and Plaintiff continued on his way.

17. Later that same day, at or about 4:00PM, at or around Broadway, near Nagle Avenue in Manhattan, Plaintiff, still driving the same 2014 Mercedes Benz ML63, was stopped by Officer Ortiz who was operating a NYPD automobile.

18. Officer Ortiz approached Plaintiff's driver side window and immediately asked for Plaintiff's license, registration and insurance card, telling Plaintiff that he was being stopped because of the automobile's tinted windows.

19. Plaintiff asked Officer Ortiz if he would show him the meter that the NYPD uses to measure the percentage of the tint of the windows to determine their legality.

20. Officer Ortiz did not have a meter with him and never measured the tinted windows in any way.

21. Officer Ortiz responded to Plaintiff's request regarding the meter by getting visibly angry and demanding Plaintiff's license, registration and insurance card.

22. Approximately one minute after Officer Ortiz first approached Plaintiff's car, Officer Ortiz opened the driver's side door of Plaintiff's automobile, unbuckled Plaintiff's seatbelt and violently pulled Plaintiff from the automobile and slammed Plaintiff face first onto the pavement.

23. Officer Ortiz and defendant P.O. Shaw ("Officer Shaw") then detained plaintiff and placed him in handcuffs.

24. Officer Ortiz and Officer Shaw then escorted plaintiffs to the NYPD 34th Precinct.

25. At the precinct, Plaintiff was searched and detained in a holding cell before Officer Ortiz issued a summons to Plaintiff for (put in charge on summons) and released him after approximately 2 hours.

26. Plaintiff had his summons fully dismissed by notice in the mail.

27. At no time did Plaintiff commit any offense against the laws of New York City and or State for which an arrest may be lawfully made.

28. As a direct and proximate result of Defendants' actions, Plaintiff suffered and continues to suffer injuries, including but not limited to emotional distress, nightmares, panic attacks, mental anguish and unwarranted severe anger bouts some or all of which may be permanent.

29. The unlawful arrest of Plaintiff, Plaintiff's wrongful imprisonment because of Defendants' knowledge of a lack of any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.

30. As a direct and proximate result of their unlawful detention, assault and confinement, Plaintiff has lived in terror of the attack, and continues to suffer from nightmares, is fearful of going outside and when he sees the police, suffers various emotional attacks and has been unable to function normally, which has caused a severe strain and breakdown in his personal relationships both in and outside of his home.

31. As a direct and proximate result of Defendants' actions, Plaintiff was arrested and detained without just or probable cause.

32. As a direct and proximate result of Defendants' actions, Plaintiff was deprived of rights, privileges and immunities under the First, Fourth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the City of New York and the State of New York.

33. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers including the Defendants in this case, for violations of the constitutional rights of citizens, thereby causing police officers including Defendants in this case, to engage in unlawful conduct.

34. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to sanction or discipline police officers including the Defendants in this case, who are aware of and subsequently conceal violations of the constitutional rights of citizens by other police officers thereby causing and encouraging police officers including Defendants in this case, to engage in unlawful conduct.

35. The actions of Defendants, acting under color of State law, deprived Plaintiff of his rights, privileges and immunities under the laws and Constitution of the United States; in particular, the rights to be secure in their person and property, to be free from the excessive use of force and from malicious prosecution, abuse of process, and the right to due process.

36. By these actions, Defendants have deprived Plaintiff of rights secured by the First, Fourth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. Section 1983.

37. Plaintiff each filed a Notice of Claim within 90 days of his arrest. (Insert notice of claim number)

38. This action has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

AS A FIRST CAUSE OF ACTION:

42 U.S.C Section 1983—Fourth, Eighth and Fourteenth Amendments—against all
Defendants

39. Plaintiff hereby restates all paragraphs above of this Complaint as if fully set forth here.

40. By detaining and imprisoning Plaintiff, without justification, probable cause or

reasonable suspicion, using excessive force, and assaulting him, the Defendants deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. Section 1983, including, but not limited to, rights guaranteed by the Fourth, Eighth and Fourteenth Amendments of the United States Constitution.

41. The Defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiffs of his constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, Eighth and Fourteenth Amendments to the United States Constitution.

42. As a direct and proximate cause of the acts of the Defendants, Plaintiff suffered the following injuries and damages:

- A. Arrest not based upon probable cause;
- B. Unwarranted and malicious criminal prosecution;
- C. Deprivation of liberty without due process of law;
- D. Excessive force imposed upon him;
- E. Summary punishment imposed upon him; and
- F. Denial of equal protection under the law.

43. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before stated.

AS A SECOND CAUSE OF ACTION:

42 U.S.C Section 1983—Retaliation in Violation of First Amendment against all Defendants

44. Plaintiff hereby restates all paragraphs above of this Complaint as if fully set forth here.

45. Plaintiff was engaging in constitutionally protected activity, including but not limited to his discussions and exchanges with the Defendants Police Officers for their objectionable conduct.

46. Plaintiffs' speech was an inquiry related to objectionable police conduct, which is a matter of important public concern.

47. Motivated in whole or in part by Plaintiff's protected verbal opposition to their conduct and/or the substance or style of his communications with them, Defendants searched, seized, and forcibly arrested Plaintiff.

48. Defendants Police Officers' adverse actions in retaliation for Plaintiff's expressed intention of exercising his first amendment rights and inquiring about objectionable police conduct caused Plaintiffs to suffer economic, physical and emotional injuries.

49. Defendants' actions, as described herein, were undertaken intentionally, willfully and wantonly.

50. Defendant Police Officers' conduct violated clearly established rights belonging Plaintiffs, of which reasonable law enforcement knew or should have known.

51. The acts or omissions of each of the Police Officer Defendants, including the unconstitutional policy, procedure, custom and/or practice described herein, were the legal and proximate cause of Plaintiffs' damages.

AS A THIRD CAUSE OF ACTION:

42 U.S.C Section 1983–Failure to Intervene in Violation of Fourth Amendment–
against all Defendants

52. Plaintiff hereby restates all paragraphs above of this Complaint as if fully set forth here.

53. Members of the NYPD have an affirmative duty to assess the constitutionality of interactions between their fellow members of service and civilians and to intervene where they observe another member of the NYPD or other law enforcement agency employing unjustified and excessive force against a civilian.

54. The Defendants Police Officers were present for the above-described incident and witnessed other Defendants' actions.

55. The Defendants Police Officers' use of force against Plaintiff was unjustified under the circumstances yet the Defendants Police Officers failed to take any action or make any effort to intervene, halt or protect Plaintiff from being subjected to their actions by other Defendant Police Officers.

56. The Defendants Police Officers' violations of Plaintiffs' constitutional rights by failing to intervene in other Defendants' clearly unconstitutional actions resulted in the injuries and damages set forth above.

AS A FOURTH CAUSE OF ACTION:

New York State Constitution, Article 1 Section 12–against all Defendants

57. Plaintiff hereby restates all paragraphs above of this Complaint as if fully set forth here.

58. By detaining and imprisoning Plaintiff without probable cause or reasonable

suspicion, using excessive force, and assaulting them, the Defendants Police Officers deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York Constitution.

59. Defendants Police Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Police Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with specific intent to deprive Plaintiff of their constitutional rights secured by Article 1, Section 12 of the New York State Constitution.

60. Defendants, their officers, attorneys, agents, servants and employees were responsible for Plaintiff's deprivation of their state constitutional rights. Defendants, as employers, are responsible for their wrongdoing under the doctrine of respondeat superior.

61. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein-before alleged.

AS A FIFTH CAUSE OF ACTION:
Assault and Battery—against all Defendants

62. Plaintiff hereby restates all paragraphs above of this Complaint as if fully set forth here.

63. In physically assaulting, handcuffing, and intimidating the Plaintiff, the Defendant Police Officers, acting in their capacities as NYPD Officers, and within the scope of their employment, each committed a willful, unlawful, unwarranted, and intentional assault and battery upon the Plaintiff.

64. As a direct and proximate result of the misconduct and abuse of authority detailed

above, Plaintiff's sustained the damages hereinbefore stated.

AS A SIXTH CAUSE OF ACTION:
False Arrest and False Imprisonment—all Defendants

65. Plaintiff hereby restates all paragraphs above of this Complaint as if fully set forth here.

66. The Defendant Police Officers wrongfully and illegally detained and imprisoned Plaintiff.

67. The wrongful arrest and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

68. At all relevant times, the Defendants acted forcibly in apprehending, detaining, and arresting Plaintiff.

70. During this period, Plaintiff was unlawfully, wrongfully and unjustifiable detained and deprived of their liberty, and imprisoned.

71. All of the foregoing occurred without any fault or provocation on the part of Plaintiff.

72. Defendants, their officers, agents, servants, and employees were responsible for Plaintiff's detention and arrest during this period of time. Defendants, as employers, are responsible for their wrongdoing under the doctrine of respondeat superior.

73. The Defendants acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable, and flagrant disregard of Plaintiffs' rights, privileges, welfare, and well-being and are guilty of egregious and gross misconduct toward Plaintiff.

AS A SEVENTH CAUSE OF ACTION:
Intentional Infliction of Emotional Distress—all Defendants

74. Plaintiff hereby restates all paragraphs above of this Complaint as if fully set forth here.

75. The Defendants engaged in extreme and outrageous conduct, intentionally and Recklessly causing severe emotional distress to Plaintiff.

76. Plaintiff's emotional distress has damaged his personal and professional life because of the severe mental pain and anguish which were inflicted through deliberate and malicious detention and imprisonment by the Defendants Officers.

77. Defendants, their officers, agents servants, and employees were responsible for the intentional infliction of emotional distress suffered by the Plaintiff at the hands of the Defendants' employees. Defendants, as employers, are responsible for their wrongdoing under the doctrine of respondeat superior.

78. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein-before stated.

AS AN EIGHTH CAUSE OF ACTION:
Negligent and Retention of Employment Services—against all Defendants

79. Plaintiff hereby restates all paragraphs above of this Complaint as if fully set forth here.

80. Upon information and belief, Defendants, owed a duty of care to Plaintiff to prevent the physical and mental abuse sustained by Plaintiff.

81. Upon information and belief, Defendants owed a duty of care to Plaintiff because under the same or similar circumstances a reasonable, prudent and careful person should have

anticipated that an injury to Plaintiff or to those in a like situation would probably result from this conduct.

82. Upon information and belief, Defendants knew or should have known through the exercise of reasonable diligence that their employees were not prudent.

83. Upon information and belief, Defendants' negligence in hiring and retaining the employees Defendants proximately caused Plaintiff's injuries.

84. Upon information and belief, because of the Defendants' negligent hiring and retention of the aforementioned Defendants, Plaintiff incurred significant and lasting injuries.

AS A NINTH CAUSE OF ACTION:

Negligence—against all Defendants

85. Plaintiff hereby restates all paragraphs above of this Complaint as if fully set forth here.

86. As a direct and proximate result of the negligent acts of all the Defendants, as set forth herein, Plaintiff suffered physical injury, conscious pain and suffering, medical expenses, lost wages, and severe mental anguish.

87. That by reason of the said negligence, Plaintiff suffered and still suffers bodily injuries, became sick, sore, lame and disabled and have remained sick, sore, lame and disabled since the aforesaid incident; has suffered great pain, agony and mental anguish and is informed and verily believes that he will continue to suffer for a long time to come and that said injuries are permanent; have suffered economic loss inasmuch as he was forced to, and is still forced to expend sums of money on medical treatment; that he was deprived of his pursuits and interests and verily believes that in the future he will continue to be deprived of such pursuits; and that said injuries are permanent.

88. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

WHEREFORE, Plaintiff respectfully requests judgment against the Defendants as follows:

1. On the First Cause of Action against all Defendants, compensatory and punitive damages in an amount to be determined at trial, and reasonable attorneys' fees and costs under 42 U.S.C. Section 1988.
2. On the Second Cause of Action against all Defendants, compensatory and punitive damages in an amount to be determined at trial, and reasonable attorneys' fees and costs under 42 U.S.C. Section 1988.
3. On the Third Cause of Action against all Defendants, compensatory and punitive damages in an amount to be determined at trial, and reasonable attorneys' fees and costs under 42 U.S.C. Section 1988.
4. On the Fourth Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, and punitive damages against the Defendants in an amount to be determined at trial;
5. On the Fifth Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, and punitive damages against the Defendants in an amount to be determined at trial;
6. On the Sixth Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, and punitive damages against the Defendants in an amount to be determined at trial;

7. On the Seventh Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, and punitive damages against the Defendants in an amount to be determined at trial;

8. On the Eighth Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, and punitive damages against the Defendants in an amount to be determined at trial;

9. On the Ninth Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, and punitive damages against the Defendants in an amount to be determined at trial; and

10. Such other and further relief as this Court may deem necessary in the interest of justice.

Dated: New York, New York
June 3, 2016

A handwritten signature in blue ink, appearing to read 'Alexei Schacht', is written over a horizontal line.

Alexei Schacht, Esq.
Attorney for Plaintiff
123 West 94th Street
New York, New York 10025

VERIFICATION

Reilly Toribio, being duly sworn, deposes and says:

I am the Plaintiff herein and I have the foregoing Summons and Complaint and know the contents thereof and the same is true to my own knowledge, except as to matters therein alleged to be on information and belief, and as to those matters, I believe them to be true.



Reilly Toribio

Sworn to before me this 3rd
day of June, 2016.



NOTARY PUBLIC

**Alexei Schacht
Notary Public, State of New York
No. 02SC4964490
Qualified in New York County
Commission Expires June 30, 2018**